

BEFORE THE
FEDERAL MARITIME COMMISSION

FMC DOCKET NO. 24-13

ACCESS ONE TRANSPORT, INC.
Complainant,

v.

COSCO SHIPPING LINES CO. LTD.
Respondent.

COMPLAINANT’S MOTION FOR CONFIDENTIAL TREATMENT

Comes now Access One Transport, Inc. (“Access” or “Complainant”) and hereby submits its Motion for Confidential Treatment for certain documents and references thereto as filed in Access’ reply brief, supplemental rebuttal appendix and supplemental reply to findings of fact. The Presiding Officer has ordered complainant to file a Motion for Confidential Treatment no later than March 26, 2025 or, in the alternative, to refile Access’ reply brief without confidential markings.

In its reply brief and supporting documents, Access cited to an email produced by respondent COSCO Shipping Line Co. Ltd. (“COSCO” or “Respondent”), which had been marked “confidential” during the course of discovery by COSCO.

The email was marked confidential, pursuant to a Protective Order issued on September 19, 2024. Per Section 4(c) of the Protective Order, since the confidential designation of the document was not lifted prior to the filing as part of Access’ reply, Access was required to file the

document in confidence. In both the public and private versions of its supplemental appendix, Access stated: *“The COSCO Email marked confidential CX01467-CX01476 is submitted as a confidential document as required by the terms of the protective order entered in this action. COSCO had designated this document as confidential in response to discovery. It was not practical to reach an agreement prior to the filing of this appendix, thus per the terms of the protective order it is being filed pursuant 46 C.F.R. §502.5. However, Access does not make any motion to maintain its confidentiality and instead will oppose any such motion if filed by COSCO since the document is not a trade secret or other confidential research, development, or commercial information pursuant to 46 C.F.R. §502.5(b).”*

Access served its supplemental appendix on COSCO on January 31, 2025. To date COSCO has not made any motion to maintain the confidentiality of those documents. However, after receipt of the Presiding Officer’s order requiring the filing of this motion, the undersigned counsel contacted counsel for COSCO via email requesting its position regarding the continued confidentiality of the email and related information and if it so desired to keep the email confidential, to explain good cause for doing so. On March 24, 2025, by return email, counsel for COSCO advised *“COSCO's position is that the excerpted emails contain commercially sensitive internal deliberations; accordingly, we believe that they should be kept confidential”*.

From Access’ perspective, good cause existed to file the email and references thereto on a confidential basis and exists to file this motion since it was required to do so per the protective order in this matter. COSCO’s position is that the email should remain confidential as COSCO contends it contains commercially sensitive information. Access does not agree with that characterization.

Date: March 24, 2025

Respectfully submitted,

Stephen M. Uthoff

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CERTIFICATE OF SERVICE

I hereby certify that on March 24, 2025, the foregoing COMPLAINANT'S MOTION FOR CONFIDENTIAL TREATMENT has been served upon all interested persons and parties by electronic means pursuant to the below list.

Stephen M. Uthoff

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Counsel for Respondent COSCO

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